

Proxima Health Privacy Policy

Last updated and effective: March 11, 2026

PLEASE READ OUR PRIVACY POLICY CAREFULLY BEFORE USING OUR SERVICES OR WEBSITE.

I. Policy Purpose & To Whom It Applies

Proxima respects your privacy and information. This Privacy Policy (“Policy”) describes the privacy practices of Proxima Health, Inc. (“Proxima,” “we,” “us,” “our”), the ways we collect, use, and disclose your Personal Information when you visit any of our websites or webpages where this Policy is posted (“Site”), view our social media or marketing, or use our environmental toxin testing services (“Testing”) (collectively with the Site and social media, the “Service”). This Policy does not represent the privacy practices of any third-party website, application, your healthcare provider or medical practice, or other service provider that may collect information, link to or be accessible on or from the Services.

Proxima is not a “covered entity” or “business associate” under the Health Insurance Portability and Accountability Act and its related regulations and amendments (“HIPAA”). Nevertheless, any Personal Information that you provide may be subject to specific protections applicable under state laws, and Proxima may only use and disclose such information in accordance with such applicable laws.

A. International Users; Use Outside the U.S.

The Service is intended solely for users in the United States. Individuals outside of the United States should not use the Service. If you are outside the United States, information related to your use of the Service may be transferred, processed, or maintained outside your state and country, and may be subject to laws in your location that may have less stringent protections than in the United States.

Our Service is only intended for users 18 years of age and older. Our Service does not knowingly collect Personal Information of users who are under 18 years of age (“Minors”). We do not solicit or knowingly collect information from Minors, and if we become aware of any such information being collected, we will take immediate action to delete it. Should you become aware that we have collected Personal Information from a Minor, please contact us at help@proxima.health.

II. Personal Information We Collect & How We Collect It

“Personal Information” means any information from or about a person that either identifies a person or that is reasonably likely to make a person identifiable when combined with other information from or about that person from any source. Personal Information does not include information that can no longer be used to identify a specific person – for example, de-identified, pseudonymized, anonymized, or aggregate information about you or our other consumers. Additionally, where we de-identify your Personal Information, we commit to maintaining that data in de-identified format.

A. Information You Provide Us

Personal Information you may provide us through the Service may include:

- Contact data – such as your first and last name, email address, billing and mailing addresses, and phone number.
- Demographic information – such as your city, state, zip code, biological sex, and age.
- Health-related information – such as information relevant to your interest in, or use of, our Testing services, and information that you provide through our environmental toxin exposure quiz. The responses you provide help us provide you with information about your potential environmental toxin burden.
- Communications that we exchange with you when you email, call, text, chat with, or communicate with us directly through social media, or otherwise.
- Commercial and Transactional data such as information needed to complete your orders placed through the Service, including order numbers and transaction history. All financial and credit card information is directly processed and stored by our service provider. This includes information about the products and services you are interested in or purchase from us.
- Marketing data – such as your preferences for receiving our marketing communications and details about your engagement with them.

B. Information Your Medical Provider Provides to Us

If you order an environmental toxin test facilitated by Proxima through your medical provider, your medical provider may provide us with health information needed to process the test, including:

- Demographic information such as your city, state, zip code, biological sex, and age.
- Health-related information related to Testing.

C. Information from Automated Data Collection; Cookies and Trackers

We receive certain information about you through companies that provide us with such information as part of their relationship with us, including [Google Ads, Google Analytics, Meta, etc.], and other tools. These organizations may automatically log electronic identifiers (such as IP address or device ID) and internet or electronic network activity data like device data, online activity, and approximate geolocation data.

- Performance and Analytics – Our Service works with analytics companies that track online activity (e.g., device information, browser details, geolocation, and how you interact with the Service) to understand the number of unique users visiting the Service and to understand how users are navigating our Services.
- Advertising and Marketing – We may also work with advertising networks that may track you and measure the effectiveness of the advertisements so that personalized advertisements or offers may be made for you. These third parties may use cookies, web beacons, device identifiers, and other technologies to collect information about your use of our Services and of other website and mobile apps – that information may include your IP address, web browser, mobile network information, pages viewed, actions completed on the website, time spent on pages, links clicked, and conversion information. This information allows us to determine whether you have visited

the Service previously, remembers preferences that you have set, statistically monitors how many people are using our Service and for what purposes, and allows delivery of advertising targeted to your interests. When you interact with our Service, web beacons, pixels, or API from our service providers', advertising providers', and marketing providers' analytics tools may capture and transmit the conversion data to help assess the efficacy of advertising campaigns and inform future advertising.

- Session replay technologies – We may use software code to track users' interactions with the Service; the replays include electronic and visual information such as users' clicks, mouse movements, and scrolls during those sessions. These help us with website optimization to understand how users are engaging with the website.

D. Other Information You Share With Us and Inferences Based on the Above

We collect Personal Information that you share with us, such as if you contact our customer service representatives or send us a message through any online or offline methods. We may also analyze the Personal Information described above to make inferences about you.

III. How We Use Your Information

A. Service Delivery and Business Operations

We may use your Personal Information to:

- To provide, deliver, operate, maintain, and protect our Service;
- To analyze and improve our Testing and Service, including developing new products or services;
- To communicate with you, respond to your inquiries, and to send you information by email, postal mail, telephone, text message, notifications, or other means about our products and services;
- To promote and conduct educational or promotional events, including those that may be in person and to support our marketing and advertising activities, including delivering personalized advertising (please see "Marketing, advertising, and analytics" in the section below);
- To enhance and help us better understand your browsing experience, needs, and preferences and provide consistent, personalized services and experiences across our Service;
- To protect the security or integrity of the Service, including to perform security analyses to verify that the Service is working properly and has not been compromised based on our legitimate interests;
- To protect us, our users, and the public, and comply with applicable law, regulation, or legal process, including to validate user information for fraud and risk detection purposes, resolve disputes and protect the rights of users and third parties, respond to claims and legal process (such as subpoenas and court orders), fulfill our reporting obligations, monitor and enforce compliance with our contracts, including any agreements between you and us, and otherwise detect, prevent, or stop any activity that may be illegal, unethical, or legally actionable; and
- To evaluate or conduct a merger, divestiture, restructuring, reorganization, dissolution, or other sale or transfer of some or all of our assets, whether as a going concern or as part of bankruptcy,

liquidation, or similar proceeding, in which Personal Information held by us about our customers is among the assets transferred.

B. Marketing, Advertising, and Analytics

We and our advertising providers may collect and use your Personal Information for marketing, advertising, and analytics purposes:

Interest-based advertising. We engage advertising companies and social media companies that use cookies and similar technologies to collect information about your interactions over time across the Service and other websites, and use that information to serve online ads that they think will interest you. These include, but are not limited to:

- **Meta Platforms.** We use Meta Platforms (including, Facebook and Instagram) (collectively, “Meta”), a web analytics and advertising service provided by Meta, on our website. The data from Meta is also saved and processed by Meta. Meta may connect this data with your Facebook or Instagram account and use it for its own and others advertising purposes, in accordance with Meta’s Data Policy which can be found at <https://www.facebook.com/about/privacy/>. You can control the information disclosed through your Meta accounts by visiting <https://www.facebook.com/about/ads>, and you can exercise your privacy rights by visiting <https://www.facebook.com/help/contact/784491318687824>.
- **Google Analytics and Google Ads.** We use Google Analytics, a web analytics service provided by Google, Inc. (“Google”) to collect certain information relating to your use of our website. We also use Google Ads, an internet-based advertising service, to advertise our services and analyze the performance of our advertising campaigns. You can find out more about how Google uses data by visiting “How Google Uses Data When You Use Our Partners’ Site or Apps” located at www.google.com/policies/privacy/partners/. For information on Google Analytics, please visit www.google.com/analytics/learn/privacy.html. You can control information disclosed via Google Ads by visiting <http://www.google.com/settings/ads> and also by installing Google Ads Opt-out Browser Add-on at <https://tools.google.com/dlpage/gaoptout>. You can delete your activity by visiting <https://support.google.com/accounts/answer/465?hl=en>.
- **Microsoft Bing Ads.** We use Bing Ads, an internet-based advertising service, to advertise our services and analyze the performance of our advertising campaigns. You can find out more about how Bing uses data by visiting the “Microsoft Privacy Statement” located at <https://privacy.microsoft.com/en-us/privacystatement>. You can control information disclosed via Bing Ads and opt out of personalized Bing advertising by visiting <https://account.microsoft.com/privacy/ad-settings> and <https://account.microsoft.com/privacy/third-party-ads>. To request that your data be deleted, please visit <https://www.microsoft.com/en-us/concern/privacy>. For more information, you can access Microsoft’s Privacy Dashboard at <https://account.microsoft.com/account/privacy>.

C. Creating anonymized, pseudonymized, aggregated, or de-identified information.

Your Personal Information may be anonymized, pseudonymized, aggregated or de-identified by removing data components (such as your name, email address, or linkable tracking identifier) that makes the data personally identifiable to you. We do this for our business operations, to disclose to other parties for our lawful business purposes, to conduct research, and for research and development of new products or services.

IV. To Whom We Disclose Your Information

We may disclose your Personal Information to the following parties and as otherwise described in this Policy:

Your healthcare provider and care team. If you ordered our Testing through your healthcare provider, we or the lab will share the results with your healthcare team and their service providers.

Testing labs. We work with third-party laboratories to process any Testing that you may order. We share your information with the lab and their service providers to facilitate your use of these Testing services.

Service providers. We may work with organizations that provide services on our behalf or help us operate the Service or our business (such as hosting, maintaining, and improving our information systems, customer support, fulfilling orders, payment processors, email delivery, and website analytics). Proxima's service providers include organizations that may process data that we collect or that is collected for us at our request. When contracting with our service providers and implementing their services, we take reasonable steps to help ensure that these service providers are not permitted to disclose, use, or share any identifiable data except as necessary to support our processing activities or as otherwise permitted or required under law.

Advertising and marketing providers. Advertising and marketing companies for the interest-based advertising purposes described above as well as print or other forms of advertising.

Business partners and affiliates. Parties with whom we collaborate on joint activities, with whom we have entered into marketing relationships or affiliate relationships who may offer, recommend, or advertise our Service to you.

Professional advisors. Professional advisors, such as lawyers, auditors, bankers and insurers, where necessary in the course of the professional services that they render to us.

Authorities and others. Law enforcement and government authorities that are necessary or appropriate for our regulatory or other legal or compliance purposes.

Business transferees. Acquirers and other relevant participants in business transactions (or negotiations and diligence for such transactions) involving a corporate divestiture, merger, consolidation, acquisition, reorganization, sale or other disposition of all or any portion of the business or assets of, or equity interests in, Proxima or our affiliates (including, in connection with a bankruptcy or similar proceedings).

Authorized or Requested by You. We may also disclose your Personal Information to entities or individuals you authorize us to share certain information with.

Selling Personal Information. Proxima does not sell, in the traditional sense (i.e., exchange for money) any Personal Information provided to us. We do not share your specific responses to our environmental toxin exposure quiz (“Quiz”) or Testing results with third-party social media networks and advertisers, however, we share usage and interaction data with these entities (such as when you interact with or complete a Quiz on our Services or order our Testing) and may use that to support business analytics, marketing, and advertising purposes, including delivering interest-based advertising. This information may be considered “sensitive” Personal Information under certain laws. Because Proxima works with third parties to deliver interest-based advertising in this manner, this practice which may be considered a “sale” of “sensitive” Personal Information under some state laws. For more information about this practice, including options you may have to control how third-party advertising platforms use your Personal Information, please see “Marketing, advertising, and analytics” in the section “How We Use Your Information” above.

V. Your Choices

You have the following choices with respect to your Personal Information:

Access, update, or delete your information. If you have registered for an account with us through the Service, you can contact us using the information provided below to request changes to the account.

Opt-out of email marketing communications. You may opt-out of marketing-related emails by following the opt-out or unsubscribe instructions at the bottom of any marketing emails sent to you from us, or by contacting us. Please note that opting out of marketing emails still allows us to send you service-related, non-marketing emails.

Text marketing. If you receive marketing text messages from us, you may opt out of receiving further marketing text messages from us by replying STOP to our marketing message. You may also text STOP to 628-333-3371.

Mobile location data. You can disable our access to your device’s approximate geolocation in your mobile device settings.

Advertising choices. You can limit use of your information for interest-based advertising by:

- Blocking third-party cookies in your browser settings.
- Using privacy browsers or ad-blocking browser plug-ins that let you block tracking technologies.
- Using your mobile device settings to limit use of the advertising ID associated with your mobile device for interest-based advertising purposes. Instructions for managing your advertising ID differ depending on your mobile device manufacturer, so please refer to your manufacturer or device settings for more information.
- You will need to apply these opt-out settings on each device from which you wish to opt-out.

Do Not Track. Some Internet browsers may be configured to send “Do Not Track” signals to the online services that you visit. We currently do not respond to “Do Not Track” or similar signals. To find out more about “Do Not Track,” please visit <http://www.allaboutdnt.com>. However, our Site may recognize certain opt-out preference signals, such as the Global Privacy Control. You may set such a signal through your browser or browser extension.

Logins via Third-Party Platforms. If you choose to connect to the Service through your Google account or other third-party platform, you may be able to use your settings in your account with that platform to limit the information we receive from it. If you revoke our ability to access information from a third-party platform, that choice will not apply to information that we have already received from that third party.

VI. Your Privacy Rights

In addition to the above choices, you may have the rights listed below (“Data Subject Rights”) with respect to the Personal Information that we collect or process about you; however, these rights differ depending on your state of residency, potentially including California, Colorado, Connecticut, Delaware, Indiana, Iowa, Kentucky, Maryland, Minnesota, Montana, Nebraska, Nevada, New Hampshire, New Jersey, Oregon, Rhode Island, Tennessee, Texas, Utah, and Virginia. Please note that we reserve the right to honor your Data Subject Rights to the extent required by applicable law and some of the privacy laws in these states may not apply to us.

- **Right to Confirm Processing, Access, and/or Obtain a Copy:** You may request that we confirm whether we are processing your Personal Information. Additionally, you may be entitled to a copy of all Personal Information you are lawfully entitled to receive, potentially including specific pieces of information, along with certain other details.
- **Right to Amend:** If you believe your Personal Information is inaccurate or incomplete, you may request that we correct it.
- **Right to Delete:** You may request that we delete your Personal Information.
- **Right of Portability:** You may request that we move, copy, or transfer the Personal Information that we hold about you to another organization.
- **Right to Withdraw Consent and/or Opt Out of Certain Processing Activities:** You may ask us to restrict or stop the processing of your Personal Information. This includes general requests and requests in specific contexts, such as if we process Personal Information that is considered “sensitive” under applicable U.S. state laws or engage in certain automated decision-making activities.
- **Right to Opt Out of Targeted Advertising:** Targeted advertising, also referred to as interest-based advertising or cross-context behavioral advertising, is the practice of serving you tailored advertisements based on your Personal Information gathered over time and across other businesses, websites, applications, or services. You have the right to opt out of this practice. Additionally, third-party advertising platforms may offer options to further control or limit this practice. Please see “Marketing, advertising, and analytics” in the section “How We Use Your Information” above for these options.
- **Right to Opt Out of Sales:** Some states may consider targeted advertising a “sale” of Personal Information. You may request that we not “sell” your Personal Information.

- Right to Non-Discrimination: We will not discriminate against you for exercising Data Subject Rights, but we may charge a reasonable fee as permitted by law in fulfilling these rights, such as if you request multiple copies of your Personal Information.
- Right to Appeal: If we deny your request to exercise a Data Subject Right, you may have the right to appeal the decision with us. If you would like to appeal a prior decision, please be sure to include information about your prior request so that we may locate our earlier determination.
- Right to Lodge a Complaint: You may submit a complaint to the competent supervisory authority in the jurisdiction in which you live if you have any concerns about our processing of your Personal Information.

If you or your authorized agents would like to request to exercise a Data Subject Right, you may do so by following the instructions in “Contact Us” below. Please note that you may also login to your account to access and correct your account information at any time.

If we are required under applicable law to process your request to exercise a Data Subject Right, we will ask you to verify your identity by confirming your name, e-mail address, phone number, or other identifiable information that we have in our records, such as your last interaction with us, if applicable.

VII. Other Sites and Services

The Service may contain links to websites, mobile applications, and other online services operated by third parties. In addition, our content may be integrated into web pages or other online services that are not associated with us but are available through our affiliate marketing providers. We do not control websites, mobile applications or online services operated by third parties, and we are not responsible for their actions. The privacy policies of those third parties would apply with regard to any information they collect, use, or disclose about the activities you perform on their webpages once you click on those third-party links. We encourage you to read the privacy policies of the other websites, applications, and online services that you use.

VIII. State-Specific Notices

Under California’s “Shine the Light” law, California residents are entitled to request and obtain from us once per calendar year information about the categories of Personal Information we have shared with third parties for their own direct marketing purposes. To request this information and for any other questions about our privacy practices and compliance with California law, please contact us using the information provided in the Contact Us section below.

IX. Changes to This Privacy Policy

We reserve the right to modify this Privacy Policy at any time. If we make material changes to this Policy, we will notify you by updating the Policy date and posting it on the Service or as otherwise required by law. Modifications to our Privacy Policy are effective as of the date on the Policy. Your use of the Service after the effective date of any modified Privacy Policy indicates your acceptance of the information

contained in the modified Privacy Policy. We encourage you to periodically review this page for the latest information.

X. Contact Us

If you'd like to receive additional information about our privacy practices, have questions, would like to make a request, or would like to exercise a data subject right, you may contact us at the below addresses:

By email: help@proxima.health

By mail:

Proxima Health, Inc.

Attn: Privacy

1401 Lavaca Street

Unit 7009

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